

ADMISSION, EXCLUSION OR REASSIGNMENT OF A STUDENT
PREVIOUSLY EXPELLED, LONG-TERM SUSPENDED
OR REASSIGNED TO AN ALTERNATIVE EDUCATION PROGRAM

Any student who has been expelled by Loudoun County Public Schools (LCPS) or by a school board or a private school in Virginia or in another state; or who has been suspended from school for more than 30 days by a school board or a private school in Virginia or in another state; or for whom admission has been withdrawn by a private school in Virginia or in another state may be excluded from LCPS. For the purposes of this policy, exclusion means denial of a student's admission or readmission to LCPS.

Nothing herein precludes a student's right to participate in a hearing prior to any exclusion decision, as set forth in Regulation 8225, Admission, Exclusion or Reassignment of a Student Previously Expelled, Long-Term Suspended or Reassigned to an Alternative Education Program. The student and/or the student's parent(s) or guardian(s) shall be provided with a copy of Policy and Regulation 8225 at the time a recommendation for exclusion is made.

A. Exclusion of a Student Expelled By LCPS. Any student who is expelled by LCPS and not permitted to attend, during the term of the expulsion, any regular LCPS school or any alternative education program or adult education program within LCPS, may petition for readmission to LCPS, to be effective one year after the date of expulsion. A student who petitions for readmission to LCPS may be admitted to, or excluded from, LCPS in accordance with Virginia Code § 22.1-277.06 and the procedures set forth in Regulation 8225, Admission, Exclusion or Reassignment of a Student Previously Expelled, Long-Term Suspended or Reassigned to an Alternative Education Program. If a petition for readmission is denied, the student is excluded from LCPS.

B. Exclusion of a Student Expelled or Suspended from School by Another Division or Private School. A student who has been expelled by a school board or a private school in Virginia or in another state; or who has been suspended from school for more than 30 days by a school board or a private school in Virginia or in another state; or for whom admission has been withdrawn by a private school in Virginia or in another state may be admitted to, or excluded from, LCPS in accordance with Virginia Code § 22.1-277.2 and the procedures set forth in Regulation 8225, Admission, Exclusion or Reassignment of a Student Previously Expelled, Long-Term Suspended or Reassigned to an Alternative Education Program. However any exclusion from LCPS may be affected only upon a finding that the student presents a danger to other LCPS students or staff.

C. Exclusion Not Permitted for a Student Reassigned to an Alternative Education Program by Another Division. A student who has been reassigned to an alternative education program (rather than having been expelled or suspended

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for more than 30 days) by another division in Virginia or in another state may not be excluded from LCPS. However, such student may be reassigned to an alternative or adult education program in LCPS in accordance with Virginia Code § 22.1-277.2:1 and the procedures set forth in Regulation 8225, Admission, Exclusion or Reassignment of a Student Previously Expelled, Long-Term Suspended or Reassigned to an Alternative Education Program.

D. Appeal of Exclusion Decision. The decision to exclude shall be final unless altered by the School Board or a three-member committee thereof after timely written appeal made in accordance with Policy 8230, Procedures for Student Disciplinary Appeals to the School Board.

E. Students with Disabilities. Nothing herein proscribes the rights of students with disabilities to receive educational services from LCPS under applicable federal and state regulations pertaining to the education of students with disabilities.

Former Policies: 8-16 and 8-23

Adopted: 06/23/20

Current Revision: 9/9/25

Legal Refs.: Code of Virginia §§ [22.1-276.01](#); [22.1-277.06](#); [22.1-277.2](#); [22.1-277.2:1](#); [8VAC20-81-160](#); 20 U.S.C. 1400 et seq.

Cross Refs.: Policy [8230](#), Procedures for Student Disciplinary Appeals to School Board; Regulation [8225](#), Admission, Exclusion or Reassignment of a Student Previously Expelled, Long-Term Suspended or Reassigned to an Alternative Education Program